

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 02/11/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-00430
CASE NAME: AFONSO INFANTE VS. VANESSA ADORABLE RALLONZA
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 7, Plaintiff's Motion for Reconsideration. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then this case is dismissed and no CMC will be scheduled.

2. 9:00 AM CASE NUMBER: C25-02393

CASE NAME: TOM SPIES VS. IRA HARRIS

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 10. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 8. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01790

CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50

HEARING IN RE: MOTION TO QUASH RECORDS SOUGHT IN SUBPOENA OF BUSINESS RECORDS

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC is **denied**.

Background

This is a personal injury action where Plaintiff Katherine Staudt ("Plaintiff") claims that on September 10, 2020, she slipped and fell at the Safeway store operated by Defendant Albertsons Safeway LLC ("Defendant") located at 1355 Moraga Way, Moraga, CA, due to a dangerous condition maintained by Safeway and/or other defendants. She claimed to have sustained significant injuries in that incident.

In Plaintiff's responses to Defendant's first set of form interrogatories, she claims she sustained injuries to her patella and tibia and the tendons in that area as well as a "frozen or locked kneecap." (Despotes Dec. ¶¶ 3, 4; Ex. 2, 3.) She claims her quadriceps and thigh muscles are only partially functional and claims dysfunction and injury to the back of her knee. (Id.) She further claims "aggravation of or injury" to her lumbar spine, gastrointestinal distress, "injury to her psyche" due to